

VCU319016 Scott, Fred Jr. vs. Vallarta Food Enterprises, Inc.

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-09-10

Motion: Defendant's (1) Motion for Summary Judgment, or Adjudication; (2) Motion for Protective Order re: Deposition

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Re: Scott, Fred Jr. vs. Vallarta Food Enterprises, Inc.

Case No.: VCU319016

Date: September 10, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Defendant's (1) Motion for Summary Judgment, or Adjudication; (2) Motion for Protective Order re: Deposition

Tentative Ruling: (1) To deny the motion; (2) To grant the motion.

(1) Motion for Summary Judgment, or Adjudication

In this matter, Plaintiff sues Defendant Vallarta for negligence and premises liability.

Defendant moves for summary judgment, or, in the alternative, summary adjudication of the following issues:

(a) That Defendant is entitled to judgment on Plaintiff's first cause of action for negligence because Plaintiff cannot demonstrate Defendant breached any duty owed to Plaintiff; and

(b) That Defendant is entitled to judgment on the second cause of action for premises liability because Defendant did not have actual or constructive notice of any dangerous condition prior to Plaintiff's fall.

In support, Defendant provides the following facts that are undisputed unless otherwise indicated.

Plaintiff fell at Vallarta in the men's restroom on January 13, 2025, at approximately 8:31 a.m. (UMF Nos. 1 and 2.)

The men's restroom was inspected by Angelica Sanchez at 8:02 a.m. on January 13, 2025, and there was nothing on the floor. (UMF No. 3.) Plaintiff disputes this, noting that Sanchez's inspection of the bathroom was insufficient because the door never closed, she did not walk inside to the sinks to see if liquid pooled on the floor and did not walk to the urinal to confirm there was no liquid by the urinal. (Plaintiff's Dispute to UMF No. 3; AUMF No. 13, 14.)

Sanchez's inspection of the men's restroom is confirmed by the January 13, 2025 inspection log maintained by Defendant. (UMF No. 4) Plaintiff disputes this fact under the same facts and evidence as the dispute to No. 3. (Plaintiff's Dispute to UMF No. 4; AUMF No. 13, 14)

Plaintiff admitted he never saw anything on the ground prior to his fall. (UMF No. 5.) Plaintiff does not know who caused the substance to be on the floor. (UMF No. 6.) Plaintiff does not know where the substance came from. (UMF No. 7.) Plaintiff does not know how long the substance had been on the floor before he fell. (UMF No. 8.)

Further, that Plaintiff does not know if Defendant had actual notice of the substance prior to the fall. (UMF No. 9.) Plaintiff disputes this fact, stating that Plaintiff did not know if anyone at Defendant Vallarta knew the liquid was on the ground before his fall. (Plaintiff's Dispute to UMF No. 9)

Nobody from Vallarta ever told Plaintiff that Vallarta knew about the substance prior to his fall. (UMF No. 10.)

Plaintiff is unaware of anything that Vallarta did that caused his fall. (UMF No. 11.) Plaintiff disputes this, stating that Sanchez's inspection of the bathroom was insufficient because the door never closed, she did not walk inside to the sinks to see if liquid pooled on the floor and did not walk to the urinal to confirm there was no liquid by the urinal. (Plaintiff's Dispute to UMF No. 11; AUMF No. 13, 14.)

Plaintiff provides additional material facts including that the inspection took approximately 9 seconds (AUMF No. 28.)

Authority and Analysis

A party may move for summary judgment in any action or proceeding if it is contended the action has no merit or that there is no defense to the action or proceeding. (Code Civ. Proc. § 437c(a).) "The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.)

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs." (Code Civ. Proc. § 437c(f)(1).) If a party seeks summary adjudication as an alternative to a request for summary judgment, the request must be clearly made in the notice of the motion. (Gonzales v. Superior Court (1987) 189 Cal.App.3d 1542, 1544.) "[A] party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that does not completely dispose of a cause of action, affirmative defense, or issue of duty pursuant to" subdivision (t). (Code Civ. Proc. § 437c(t).)

To prevail, the evidence submitted must show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c(c).) The motion cannot succeed unless the evidence leaves no room for conflicting inferences as to material facts; the court has no power to weigh one inference against another or against other evidence. (Murillo v. Rite Stuff Food Inc. (1998) 65 Cal.App.4th 833, 841.) In determining whether the facts give rise to a triable issue of material fact, "[a]ll doubts as to whether any material, triable, issues of fact exist are to be resolved in favor of the party opposing summary judgment..." (Gold v. Weissman (2004) 114 Cal.App.4th 1195, 1198-99.) "In other words, the facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences there from

must be accepted as true.” (Jackson v. County of Los Angeles (1997) 60 Cal.App.4th 171, 179.) However, if adjudication is otherwise proper the motion “may not be denied on grounds of credibility,” except when a material fact is the witness’s state of mind and “that fact is sought to be established solely by the [witness’s] affirmation thereof.” (Code Civ. Proc. § 437c(e).)

Once the moving party has met their burden, the burden shifts to the opposing party “to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.” (Code Civ. Proc. § 437c(p)(1).) “[T]here is no obligation on the opposing party... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element... necessary to sustain a judgment in his favor.” (Consumer Cause, Inc. v. SmileCare (2001) 91 Cal.App.4th 454, 468.)

Objections

Defendant objects to the declaration of Plaintiff’s expert. The Court does not deem these objections material to disposition of the motion pursuant to Code of Civil Procedure section 473c(q).

Negligence and Premises Liability

The elements of a cause of action for negligence are: (1) a duty on the part of defendant toward plaintiff; (2) defendant’s breach of that duty; and (3) harm to the plaintiff caused by that breach. (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1142.)

The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages. (McIntyre v. The Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

The court in *Girvetz v. Boys’ Market* (1949) 91 Cal.App.2d 827, 829 states:

“The defendant market owner was not an insurer of the safety of his patrons, but owed them the duty to exercise reasonable care in keeping the premises safe for his invitees. To impose liability for injuries suffered by an invitee due to the defective condition of the premises, the owner or occupier must have either actual or constructive knowledge of the dangerous condition or have been able by the exercise of ordinary care to discover the condition, which if known to him, he should realize as involving an unreasonable risk to invitees on his premises. His negligence in such cases is founded upon his failure to exercise ordinary care in remedying the defect after he has discovered it. Whether, under all the circumstances, the defective condition had existed long enough so that a reasonable man exercising reasonable care would have discovered it, is ordinarily a question of fact to be decided by the jury. The fact alone that a dangerous condition existed at the time the accident occurred will not warrant an inference that the defendant was negligent. There must be some evidence, direct or circumstantial, to support the conclusion that the condition had existed long enough for the proprietor, in the exercise of reasonable care, to have discovered and remedied it.”

To establish a breach of duty therefore, “...the owner’s actual or constructive knowledge of the dangerous condition is a key to establishing its liability. Although the owner’s lack of knowledge is not a defense, to impose liability for injuries suffered by an invitee due to a defective condition of the premises, the owner or occupier must have either actual or constructive knowledge of the dangerous condition or have been able by the exercise of ordinary care to discover the condition, which if known to him, he should realize as involving an unreasonable risk to invitees on his premises...” (Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1205.)

As such, the Court views the two issues presented for summary adjudication, that is breach of duty and lack of actual or constructive knowledge” as one in the same.

Here, the Court agrees that Defendant lacked actual knowledge of the condition of the bathroom.

However, the lack of actual knowledge is based upon the approximately nine second inspection by Sanchez that did not include letting the door close behind her, checking for liquid near the sinks or urinal. The Court cannot say, as a matter of law, that Sanchez sufficiently checked the bathroom for liquid on the ground in the approximately nine seconds of inspection and whether an inspection lasting longer than nine seconds would have yielded knowledge of whether there was liquid on the ground to a degree where additional steps were necessary. This is question of fact for the jury. As such, the length of time between Sanchez's inspection and Plaintiff's injury is not dispositive on the issue of constructive knowledge.

"We conclude that plaintiffs still have the burden of producing evidence that the dangerous condition existed for at least a sufficient time to support a finding that the defendant had constructive notice of the hazardous condition. We also conclude, however, that plaintiffs may demonstrate the storekeeper had constructive notice of the dangerous condition if they can show that the site had not been inspected within a reasonable period of time so that a person exercising due care would have discovered and corrected the hazard. In other words, if the plaintiffs can show an inspection was not made within a particular period of time prior to an accident, they may raise an inference the condition did exist long enough for the owner to have discovered it. It remains a question of fact for the jury whether, under all the circumstances, the defective condition existed long enough so that it would have been discovered and remedied by an owner in the exercise of reasonable care." (Ortega v. Kmart (2001) 26 Cal.4th 1200, 1212-1213.)

Therefore, the Court denies the motion.

(2) Motion for Protective Order re: Deposition of David Alonzo

In this matter, Plaintiff has taken the depositions of Defendant's Person Most Knowledgeable on July 28, 2025, and three Vallarta employees: Jose Moreno on February 5, 2026, Maria Suarez on February 6, 2026, and Angelica Sanchez on February 6, 2026.

Defendant's counsel indicates these four witnesses have knowledge of the restroom, the alleged incident and Defendant's maintenance and inspection practices. (Declaration of Benton ¶13.)

On July 9, 2026, Plaintiff served a Notice of Deposition of David Alonzo, Vallarta's Risk-Management and General-Liability Manager for July 31, 2026.

On July 24, 2026, Defendant's counsel served a timely objection to the deposition notice on the grounds that counsel was "...engaged in trial in Fresno County through July 31, 2026." (Declaration of Benton ¶15.)

On August 7, 2026, Plaintiff served a Notice of Deposition of David Alonzo for August 24, 2026.

On August 11, 2026, Defendant moved for this protective order that the deposition of Alonzo not be taken at all or limiting the deposition "...to matters, if any, as to which Plaintiff makes the showing the law requires." Defendant further moves for sanctions in the amount of \$2,047.50.

In support, Defendant's counsel states "Mr. Alonzo did not witness the alleged incident, was not present at the store, and has no personal knowledge of the facts underlying Plaintiff's claim. His role is limited to risk management and general-liability administration. His only involvement in this matter is that, as a corporate agent, he signed the verifications to Vallarta's responses to Plaintiff's written discovery." (Declaration of Benton ¶19.) As such, Defendant argues this deposition is barred by the "apex doctrine" as Alonzo is a management-level corporate official who lacks unique or superior personal knowledge of the relevant facts

In opposition, Plaintiff argues that Alonzo received a report pertaining to inspection of the bathroom after the incident and that, as the risk manager, knows Defendant's policies as to bathroom inspections.

Authority and Analysis

Code of Civil Procedure section 2025.420(a) provides that:

"Before, during, or after a deposition, any party, any deponent, or any other affected person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040."

The Court, for good cause shown, can make any order as justice requires from finding that the deposition should not proceed, to the deposition being taken subject to conditions, or that some other method other than a deposition be utilized. (Code Civ. Proc. § 2025.420(b).)

Apex Doctrine

As to depositions of "apex" witnesses or high-level corporate officers, *Liberty Mutual Ins. Co. v. Superior Court* (1992) 10 Cal. App. 4th 1282, 1287-1289 states:

"...[w]hen a plaintiff seeks to depose a corporate president or other official at the highest level of corporate management, and that official moves for a protective order ... the trial court should first determine whether the plaintiff has shown good cause that the official has unique or superior personal knowledge of discoverable information. If not...the trial court should issue the protective order and first require the plaintiff to obtain the necessary discovery through less-intrusive methods. These would include interrogatories directed to the high-level official to explore the state of his or her knowledge of involvement in plaintiffs case; the deposition of lower level employees with appropriate knowledge and involvement in the subject matter of the litigation; and the organizational deposition of the corporation itself, which will require the corporation to produce for deposition the most qualified officer or employee to testify on its behalf as to the specified matters to be raised at the deposition."

Here, while Plaintiff has deposed lower level employee with personal knowledge of the issues and facts in this case, as well as a person most qualified, Plaintiff has not directed interrogatories at Alonzo "... to explore the state of his or her knowledge of involvement in plaintiffs case."

Plaintiff has not demonstrated through such interrogatories that Alonzo possesses knowledge as to the bathroom floor surface.

As such, the Court finds application of *Liberty Mutual* here and will issue the protective order.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.